

Libel in the Cyber Space: *Cyber Libel in a Prism*

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I Libel vis-a-vis Cyber Libel

Libel is a crime against honor. "A libel is a public and malicious imputation of a crime, or of a vice or defect, real or imaginary, or any act, omission, condition, status or circumstance tending to cause the dishonor, discredit, or contempt of a natural or juridical person, or to blacken the memory of one who is dead."¹

"Libel generally refers to the offense of injuring a person's character, fame or reputation through false and malicious statements. It tends to injure the reputation or diminish the esteem, respect, goodwill of a person or excite derogatory feelings or opinions against a person. It is the publication of anything which is injurious to the good name or reputation of another, or tends to bring him/her into disrepute."²

With the enactment of Republic Act No. 10175 or the Cybercrime Prevention Act of 2012, libel is now defined as the unlawful or prohibited acts of libel as defined in Article 355 of the Revised Penal Code (RPC), as amended, committed through a computer system or any other similar means which may be devised in the future."³

As provided in Article 355 of the RPC, *libel is committed by writings or similar means* through any of the following: writing, printing, lithography, engraving, radio, phonograph, painting, theatrical exhibition, cinematographic exhibition or any similar means.⁴ Cyber libel is libel committed through "similar means" particularly through Information Communication Technologies (ICTs) or the internet.⁵

¹ Act No. 3815. Revised Penal Code. (December 8, 1930) Retrieved on November 9, 2022 from https://lawphil.net/statutes/acts/act_3815_1930.html#:~:text=Conspiracy%20and%20proposal%20to%20commit,and%20decide%20to%20commit%20it

² Hofileña, Saul Jr. (October 22, 2022). Libel and cybel libel. Retrieved November 9, 2022 from <https://www.manilatimes.net/2022/10/22/opinion/columns/libel-and-cyber-libel/1863237>

³ Republic Act No. 10175. Cybercrime Prevention Act of 2012. (September 12, 2012). Retrieved November 9, 2022 from https://lawphil.net/statutes/repacts/ra2012/ra_10175_2012.html

⁴ Act No. 3815. Revised Penal Code (December 8, 1930) Retrieved November 9, 2022 from https://lawphil.net/statutes/acts/act_3815_1930.html#:~:text=Conspiracy%20and%20proposal%20to%20commit,and%20decide%20to%20commit%20it

⁵ Republic Act No. 10175. Cybercrime Prevention Act of 2012 (September 12, 2012). Retrieved November 9, 2022 from https://lawphil.net/statutes/repacts/ra2012/ra_10175_2012.html

The Cybercrime Prevention Act of 2012 does not define cyber libel. In the case of *Disini vs. Secretary of Justice* (GR No. 203335, February 11, 2014⁶), the Supreme Court explained that a qualifying circumstance arises from the fact that in “using [the] technology in question, the offender often evades identification and is able to reach far more victims or cause greater harm.”⁷

II Elements of Cyber Libel

The elements of cyber libel as stated in the Cyber Crime Prevention Act of 2012 are the following:

- a. The allegation of a discreditable act or condition concerning another;
- b. Publication of the charge;
- c. Identity of the person defamed;
- d. Existence of malice,⁸ and
- e. Use of Computer System.⁹

As to the first requirement, the allegation must be a malicious imputation of a crime or of a vice or defect, real or imaginary, or any act, omission, condition, status or circumstance tending to cause the dishonor, discredit or contempt of a natural or juridical person or to blacken the memory of one who is dead.¹⁰

As to the second requirement, particular to cyber libel, the publication requirement is satisfied when the allegation is made publicly through the use of information and communication technologies.¹¹

For the third requisite identified, it is not necessary that the person defamed is named. If the totality of the publication makes it possible to determine who the defamed person is, then this element is satisfied.¹²

⁶ G.R. No. 203335. *Jose Jesus M. Disini, et al vs The Secretary of Justice, et al* (February 11, 2014) Retrieved November 11, 2022 from https://lawphil.net/judjuris/juri2014/feb2014/gr_203335_2014.html

⁷ The Daily Tribune (25, February 2019). About Cyber Libel. Retrieved November 10, 2020 from [https://www.divinalaw.com/dose-of-law/about-cyber-libel/#:~:text=Secretary%20of%20Justice%20\(G.R.i s%20not%20unconstitutional%20as%20well.](https://www.divinalaw.com/dose-of-law/about-cyber-libel/#:~:text=Secretary%20of%20Justice%20(G.R.i s%20not%20unconstitutional%20as%20well.)

⁸ *Id.*

⁹ P & L Law (June 14, 2020) Online Libel as Cybercrime in the Philippines: Definition, Requisites and Application of Penalties. Retrieved November 10, 2022 from <https://pnl-law.com/blog/online-libel-as-cybercrime-in-the-philippines-definition-requisites-and-application-of-penalties/>

¹⁰ *Id.*

¹¹ *Id.*

¹² The Daily Tribune (25, February 2019). About Cyber Libel. Retrieved November 10, 2020 from [https://www.divinalaw.com/dose-of-law/about-cyber-libel/#:~:text=Secretary%20of%20Justice%20\(G.R.i s%20not%20unconstitutional%20as%20well.](https://www.divinalaw.com/dose-of-law/about-cyber-libel/#:~:text=Secretary%20of%20Justice%20(G.R.i s%20not%20unconstitutional%20as%20well.)

For the fourth requisite, malice exists when the offender makes the defamatory statement with the knowledge that it is false or with reckless disregard of whether it was false or not.¹³

Finally, as noted above, the act should be committed through a computer system or any other similar means which may be devised in the future.¹⁴

A “computer system” is defined in R.A. No. 10175 as “any device or group of interconnected or related devices, one or more of which, pursuant to a program, performs automated processing of data. It covers any type of device with data processing capabilities including, but not limited to, computers and mobile phones. The device consisting of hardware and software may include input, output and storage components which may stand alone or be connected in a network or other similar devices. It also includes computer data storage devices or media.” The rule on Cybercrime Warrants has a shorter definition: a computer system refers to any device or group of interconnected or related devices, one or more of which, pursuant to a program, performs automated processing of data.¹⁵

Every defamatory imputation is presumed to be malicious, even if it be true, if no good intention and justifiable motive for making it is shown, except in the following cases:¹⁶

1. A private communication made by any person to another in the performance of any legal, moral or social duty; and
2. A fair and true report, made in good faith, without any comments or remarks, of any judicial, legislative or other official proceedings which are not of confidential nature, or of any statement, report or speech delivered in said proceedings, or of any other act performed by public officers in the exercise of their functions.¹⁷

¹³ *Id.*

¹⁴ P & L Law (June 14, 2020) Online Libel as Cybercrime in the Philippines: Definition, Requisites and Application of Penalties. Retrieved November 10, 2022 from <https://pnl-law.com/blog/online-libel-as-cybercrime-in-the-philippines-definition-requisites-and-application-of-penalties/>

¹⁵ *Id.*

¹⁶ Act No. 3815. Revised Penal Code (December 8, 1930) Retrieved on November 9, 2022 from https://lawphil.net/statutes/acts/act_3815_1930.html#:~:text=Conspiracy%20and%20proposal%20to%20commit,and%20decide%20to%20commit%20it

¹⁷ *Id.*

III Who may be libeled?

A person libeled may be a natural person, or a juridical person, such as a corporation. The heirs of a deceased person may also file a criminal case for libel, if libel is committed to blacken the memory of an ancestor.¹⁸

One of the aforementioned elements of libel which should be proved is the identification of the victim of the libelous imputation. To maintain a libel suit, it is essential that the victim is identifiable, though not necessarily mentioned by name. It is enough if by intrinsic reference the allusion is apparent; or, if the publication contains matters of description or reference to facts and circumstances from which readers of the article may deduce the identity of the victim of the libel; or if he/she is pointed out by extraneous circumstances so that persons who know him/her would be aware that he/she is the person being libeled.¹⁹

IV Penalties for Cyber Libel

When committed through ICTs, libel becomes cyber libel, which carries a higher penalty by one degree under Section 6 of the Cybercrime Prevention Act.²⁰

Specifically, libel under the RPC is punished with prison correccional in its minimum period, which is from six months and one day to two years and four months and medium period, which is from two years, four months and one day to four years and two months; or a fine ranging from P200 to P6,000 or both.²¹

However, if it is cyber libel, the penalty is increased by one degree. Thus, the penalty is prison correccional in its maximum period, which is from four years, two months and one day to six years and prison mayor in its minimum period, which is from six years and one day to eight years.²²

¹⁸ Hofileña, Saul Jr. (October 22, 2022). Libel and cybel libel. Retrieved November 9, 2022 from <https://www.manilatimes.net/2022/10/22/opinion/columns/libel-and-cyber-libel/1863237>

¹⁹ *Id.*

²⁰ Republic Act No. 10175. Cybercrime Prevention Act of 2012 (September 12, 2012). Retrieved November 9, 2022 from https://lawphil.net/statutes/repacts/ra2012/ra_10175_2012.html

²¹ Act No. 3815. Revised Penal Code (December 8, 1930) Retrieved on November 9, 2022 from https://lawphil.net/statutes/acts/act_3815_1930.html#:~:text=Conspiracy%20and%20proposal%20to%20commit,and%20decide%20to%20commit%20it

²² The Daily Tribune (25, February 2019) Retrieved on November 10, 2022 from [https://www.divinalaw.com/dose-of-law/about-cyber-libel/#:~:text=Secretary%20of%20Justice%20\(G.R.,is%20not%20unconstitutional%20as%20well](https://www.divinalaw.com/dose-of-law/about-cyber-libel/#:~:text=Secretary%20of%20Justice%20(G.R.,is%20not%20unconstitutional%20as%20well).

V Application of Penalty

The Supreme Court has affirmed the policy contained in its Administrative Circular No. 08-2008 issued on January 25, 2008²³, which provides for guidelines in the imposition of penalties in libel cases. It provides:²⁴

1. This Administrative Circular does not remove imprisonment as an alternative penalty for the crime of libel under Article 355 of the Revised Penal Code;
2. The Judges concerned may, in the exercise of sound discretion, and taking into consideration the peculiar circumstances of each case, determine whether the imposition of a fine alone would best serve the interests of justice or whether forbearing to impose imprisonment would depreciate the seriousness of the offense, work violence on the social order, or otherwise be contrary to the imperatives of justice;
3. Should only a fine be imposed and the accused be unable to pay the fine, there is no legal obstacle to the application of the *Revised Penal Code* provisions on subsidiary imprisonment.

The Supreme Court clarified that the Circular does not remove the discretion of courts to sentence to imprisonment the accused in libel. In other words, judicial policy states that a fine alone is generally acceptable as a penalty for libel. The courts may however impose imprisonment as a penalty if, under the circumstances, a fine is insufficient to meet the demands of substantial justice or would depreciate the seriousness of the offense.²⁵

VI Jurisdiction for the Crime of Cyber Libel

In prosecuting the crime of libel or cyber libel, venue is jurisdictional.²⁶

For ordinary libel, the venue, where the complainant is a private individual, is limited to only either of two places, namely: where the complainant actually resides at

²³Administrative Circular No. 08-2008: GUIDELINES IN THE OBSERVANCE OF A RULE OF PREFERENCE IN THE IMPOSITION OF PENALTIES IN LIBEL CASES. (January 25, 2008). Retrieved November 10, 2022 from https://lawphil.net/courts/supreme/ac/ac_8_2008.html

²⁴ P & L Law (June 14, 2020) Online Libel as Cybercrime in the Philippines: Definition, Requisites and Application of Penalties. Retrieved November 10, 2022 from <https://pnl-law.com/blog/online-libel-as-cybercrime-in-the-philippines-definition-requisites-and-application-of-penalties/>

²⁵ *Id.*

²⁶ *Id.*

the time of the commission of the offense; or where the alleged defamatory article was printed and first published.²⁷

However, for cyber libel, the place where the defamatory article was printed and first published is impossible to ascertain. It also cannot be where the defamatory online article was first accessed.²⁸

In *Bonifacio v. RTC of Makati City* (GR No. 184800, May 5, 2010)²⁹, the SC said allowing cyber libel to be filed where the article is first accessed means that the author of the defamatory article may be sued anywhere in the Philippines. The private complainant can just allege that he accessed the defamatory online article in a far-flung place.³⁰ For instance, a writer in Cebu who posts a libelous column may then be sued in Iloilo City, where the offended party allegedly first accessed the said posting. To prevent this situation, the High Court effectively limited the venue to the place where the complainant actually resides at the time of the commission of the offense.³¹

VII Separate Charges under RPC and R.A. No. 10175

Section 7 of the Cybercrime Prevention Act of 2012 provides that a “prosecution under this Act shall be without prejudice to any liability for violation of any provision of the Revised Penal Code, as amended, or special laws” (Sec. 7). In a subsequent case, the Supreme Court stated that the determination of the applicability of Section 7 will be left to actual cases in the future.³²

The Supreme Court, however, declared that there can be no two prosecutions of libel under the RPC and online libel under R.A. No. 10175, for such constitutes a violation of the proscription against double jeopardy. When a published material on print, said to be libelous, is again posted online or vice versa, that identical material cannot be the subject of two separate charges for libel. The two offenses, one a violation of the RPC and the other a violation of R.A. No. 10175 involve essentially the same elements and are in fact one and the same offense.³³

²⁷ *Id.*

²⁸ *Id.*

²⁹ GR No. 184800. *Wonina M. Bonifacio, et al. vs RTC of Makati, et al.* (May 5, 2010) Retrieved on November 10, 2022 from https://lawphil.net/judjuris/juri2010/may2010/gr_184800_2010.html

³⁰ *Id.*

³¹ *Id.*

³² P & L Law (June 14, 2020) Online Libel as Cybercrime in the Philippines: Definition, Requisites and Application of Penalties. Retrieved November 10, 2022 from <https://pnl-law.com/blog/online-libel-as-cybercrime-in-the-philippines-definition-requisites-and-application-of-penalties/>

³³ *Id.*

VIII Cyber Libel Demographics in the Philippines

Since the law covering criminal cyber libel was passed in 2012, Philippine authorities have junked about one-third or 1,131 cyber libel cases out of the total libel cases filed which is 3770. About 30% of these cyber libel cases filed have been dismissed.³⁴ As of May 2022, there have been 12 convictions for cyber libel, while there have been 4 acquittals.³⁵

IX Cyber Libel Case of Maria Ressa

The case of Maria Ressa is one of the most recent cyber libel cases. Although the article in question was published months before the law's enactment, a correction made in 2014 of a typographical error was considered a separate offense and reset the clock of the prescription period.³⁶

In affirming the conviction of Ressa, the Court of Appeals further extended the prescription of cyber libel from 12 years to 15 years.³⁷

Recently, Ressa took her appeal against a conviction for cyber libel to the Supreme Court³⁸ after the Court of Appeals Fourth Division rejected her appeal and added months to her sentence which was originally set for six months and one day as minimum to six years as maximum. The appeals court added 8 months and 20 days to the maximum imprisonment penalty.³⁹

X Is Cyber Libel a Continuing Crime?

The National Bureau of Investigation (NBI) used this theory in the case of Maria Ressa that cyber libel is a continuing crime when the libelous article is not removed from the online news site.⁴⁰

³⁴ Buan, Lian (July 20, 2022). Decriminalize libel: PH junked one-third of cyber libel cases filed since 2012. Retrieved November 9, 2022 from <https://www.rappler.com/newsbreak/in-depth/decriminalize-philippines-junked-cyber-libel-cases-since-2012/>

³⁵ *Id.*

³⁶ *Id.*

³⁷ *Id.*

³⁸ Strangio, Sebastian (October 12, 2022). Philippines' Maria Ressa to Appeal Cyberlibel Case at Supreme Court – The Diplomat. Retrieved November 10, 2022 from <https://thediplomat.com/2022/10/philippines-maria-ressa-to-appeal-cyberlibel-case-at-supreme-court/>

³⁹ Bolledo, Jairo (October 11, 2022). Court of Appeals denies Maria Ressa's appeal in cyber libel case. Retrieved November 10, 2022 from <https://www.rappler.com/nation/court-appeals-denies-maria-ressa-appeal-cyber-libel-case/>

⁴⁰ Seares, Pachico (March 26, 2018). Cyber libel as 'continuing crime'. Retrieved November 10, 2022 from <https://www.cebujournalism.org/cyber-libel-as-continuing-crime/>

However, Professor Disini of the UP College of Law and the lawyer of Rappler, believes that such a view is dangerous for media. On the theory of continuous publication, he argues that “If the theory is that a libelous article published in the past, continues to be accessible today, and that such constitutes libel today, then no one is safe” — not just in media but would also include bloggers. He said that he could not recall any case in Philippine jurisprudence where the theory of continuous publication was applied.⁴¹

In my opinion, it is a basic principle in interpreting laws that in case of ambiguity, it should always favor the accused. Given the express provision of the RPC’s one-year prescription for libel, the theory of continuing crime may not apply.

The case of Maria Ressa was already appealed at the Supreme Court and the decision on this case will be the jurisprudence that will set the standard for future cases of cyber libel especially on ascertaining if it is a continuing crime or not.

XI Constitutionality of Cyber Libel

The movement to decriminalize libel has an ally in the Philippine Supreme Court – Senior Associate Justice Marvic Leonen who voted in 2012 to declare cyber libel unconstitutional. Leonen feared that the 1930s definition of libel in the revised penal code is outdated and will no longer apply to the internet era.⁴²

However, the constitutionality of the provision on cyber libel was subsequently assailed in *Disini v. Secretary of Justice* (G.R. No. 203335, February 11, 2014)⁴³. The SC ruled that libel is not a constitutionally protected speech. It follows therefore that the cyber libel is not unconstitutional as well.⁴⁴

The SC agrees with the Solicitor General that libel is not a constitutionally protected speech and that the government has an obligation to protect private individuals from defamation. Indeed, cyber libel is actually not a new crime since Article 353, in relation to Article 355 of the penal code, already punishes it.⁴⁵

⁴¹ UP Law Faculty Highlights (January 24, 2018) Prof. JJ Disini: Is Cyber Libel a continuing crime? Retrieved November 10, 2022 from <https://law.upd.edu.ph/prof-jj-disini-is-cyber-libel-a-continuing-crime/>

⁴² Buan, Lian (July 20, 2022). Decriminalize libel: PH junked one-third of cyber libel cases filed since 2012. Retrieved November 9, 2022 from <https://www.rappler.com/newsbreak/in-depth/decriminalize-philippines-junked-cyber-libel-cases-since-2012/>

⁴³ G.R. No. 203335. *Jose Jesus M. Disini, et al vs The Secretary of Justice, et al* (February 11, 2014) Retrieved November 11, 2022 from https://lawphil.net/judjuris/juri2014/feb2014/gr_203335_2014.html

⁴⁴ The Daily Tribune (25, February 2019). About Cyber Libel. Retrieved November 10, 2020 from [https://www.divinalaw.com/dose-of-law/about-cyber-libel/#:~:text=Secretary%20of%20Justice%20\(G.R.,is%20not%20unconstitutional%20as%20well.](https://www.divinalaw.com/dose-of-law/about-cyber-libel/#:~:text=Secretary%20of%20Justice%20(G.R.,is%20not%20unconstitutional%20as%20well.)

⁴⁵ G.R. No. 203335. *Jose Jesus M. Disini, et al vs The Secretary of Justice, et al* (February 11, 2014) Retrieved November 11, 2022 from https://lawphil.net/judjuris/juri2014/feb2014/gr_203335_2014.html

The SC's acquiescence goes only insofar as the cybercrime law penalizes the author of the libelous statement or article. Cyber libel brings with it certain relevant changes absent in the RPC. The culture associated with internet media is distinct from that of print.⁴⁶

XII Conclusion

Although that the Supreme Court has tackled the relatively new Cybercrime Prevention Act of 2012 in only a handful of cases, it can be noted that there are still 1317 cyber libel cases⁴⁷ filed in the courts.

With the rising engagement of people using information technology, it is inevitable that there may be more cases and jurisprudence on cyber libel in the future.

The Internet is a mighty medium. If used responsibly, it can lead to a good deal of advantages to society. But if utilized for iniquitous ends, the detriment to the community is unthinkable.

As Benjamin Franklin Parker, in the movie Spider Man said: "With great power comes great responsibility." Technology, through the use of cyberspace, has given us great power. However, we should use it cautiously and responsibly for the benefit of the society. ■

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⁴⁶ *Id*

⁴⁷ Buan, Lian (July 20, 2022). Decriminalize libel: PH junked one-third of cyber libel cases filed since 2012. Retrieved November 9, 2022 from <https://www.rappler.com/newsbreak/in-depth/decriminalize-philippines-junked-cyber-libel-cases-since-2012/>

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